

**Chapter 10.68**  
**CRITICAL TRAFFIC AND PARKING AREAS**

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**10.68.010 Establishment authorized.**

The governing body may, after a public hearing thereon, and after recommendation of the city traffic engineer, and after receiving a written application as specified in Section 10.68.030, designate a critical traffic and parking area consisting of certain streets or parts thereof in a compact and contiguous area. The governing body shall also specify special traffic and parking restrictions within each critical traffic and parking area thus established. (2001 In-house code § 28-318)

**10.68.020 Findings required.**

No critical traffic and parking area may be established until after the governing body shall have made the following findings:

A. That either or both of the following circumstances pertain to the area:

1. The area is detrimentally impacted by the parking of commuter vehicles during the proposed hours of restriction,
2. The area is zoned as a residential district and is adjacent to an area zoned as a business, manufacturing, or governmental district and is detrimentally impacted by the parking of vehicles by patrons of businesses or offices located in the said business, manufacturing, or governmental district;

B. The area does not have sufficient off-street vehicle parking for the use and convenience of the residents thereof in the vicinity of their homes;

C. Vehicle noise, pollution, or congestion will work unacceptable hardships on the residents of the area if present parking is to continue unregulated;

D. The health, safety and welfare of residents of the area and the city as a whole and the attractiveness and livability of specific neighborhoods will be promoted by a system of preferential parking enacted under this chapter. (2001 In-house code § 28-319)

**10.68.030 Procedures for establishment.**

Upon receipt of written application representing a majority of the dwelling units located within the proposed critical parking and traffic area, the establishment process will be initiated. The request will also indicate the area proposed and the restrictions suggested. The application shall be submitted to the city clerk, who will then refer the request to the governing body. The governing body may then direct the city traffic engineer to conduct a traffic and parking survey of the traffic and parking conditions in the area proposed. The city traffic engineer will involve the other city departments and independent groups so that the survey addresses the entire concern. The city traffic engineer will then recommend either the granting or the denial of the designation or the designation with modification as to the area or proposed restrictions. (2001 In-house code § 28-320)

**10.68.040 Residential parking permits authority.**

The establishment of a critical traffic and parking area shall provide for the issuance of residential parking permits subject to the following requirements:

A. The city traffic engineer shall identify the location and hours and days to be regulated by the residential parking permit procedure.

B. An application for a permit shall be on a form prepared by the city clerk and shall contain the name and address of the owner and/or occupant, make, model, and license number of the vehicle(s) and other such information as is reasonably necessary to enforce the provisions of this section. The application will be submitted to the city clerk.

This application shall be presented with a valid driver's license and such other information as may be

necessary to prove residence within the designated critical traffic and parking area. No person shall furnish false information in an application for a vehicle permit. A false application shall be grounds for revocation of the permit and is punishable pursuant to the Cheyenne City Code.

C. A nonrefundable permit application fee of ten dollars (\$10.00) shall accompany each application. A ten dollar (\$10.00) deposit is required for each application to be refunded upon cancellation of permit. An additional fee of five dollars (\$5.00) shall be charged for each vehicle permit issued, renewed, or transferred.

D. The permit decal shall be placed on the inside of the lower left corner of the vehicle's windshield.

E. Permits shall be made available on a yearly renewable basis within those areas recommended in the city engineer's report and authorized by the governing body action and issued to the following:

1. Residents;
2. An owner, manager, or their designee of a business located within the designated critical traffic and parking area.

F. Temporary parking permits for bona fide visitors shall be granted to the residents of the critical parking and traffic area. These temporary parking permits for visitors shall be granted in accordance with the intent of these regulations and according to rules promulgated by the city engineer and city clerk and approved by the governing body, with the exception that no temporary parking permits shall be required for service vehicles or any commuter or non-residential vehicles parked within a critical traffic and parking area for two hours or less.

G. The provisions of these regulations shall not abrogate privileges granted to handicapped persons as defined by the Cheyenne City Code or the Wyoming State Statutes.

H. Such permit shall allow parking in the designated area during the time specified by the governing body action and posted on signs in the designated critical traffic and parking area. A parking permit shall not guarantee or reserve to the holder a parking space within the designated area. (2001 In-house code § 28-321)

#### **10.68.050 Disestablishment or modification.**

The governing body may disestablish or modify a critical traffic and parking area after conducting a public hearing and finding that the circumstances that originally prompted the establishment of the area no longer pertain. The governing body may modify the special traffic and parking restrictions in an established area if it determines that a change of circumstances warrants such modification. (2001 In-house code § 28-322)

#### **10.68.060 Existing areas continued.**

All critical traffic and parking areas established shall continue until disestablished or modified. (2001 In-house code § 28-323)

#### **10.68.070 Signs—Violation prohibited.**

A. The city traffic engineer shall place and maintain appropriate signs indicating the parking restrictions in areas designated as critical traffic and parking areas.

B. It is unlawful and a person commits an offense under this chapter if he or she parks a vehicle not having a valid permit as set forth herein in such designated critical parking area. Any violation under this section shall be punishable by a fine not to exceed ten dollars (\$10.00) for each violation. Such violation shall be plainly imprinted on the notice of violation, together with the cost of violation which may be paid in lieu of appearing in municipal court. (2001 In-house code § 28-324)